

## **The complaint**

Mrs S complains that Royal & Sun Alliance Insurance trading as More Than (RSA) made an unfair claim decision on her home insurance claim.

## **What happened**

Mrs S contacted RSA in February to notify it of water entering her property from one of the upstairs bedrooms as a result of storm damage. She believed this was coming from the roof with water dripping from the ceiling. She said this has also caused damaged to other areas of the property with water damage to the kitchen too.

RSA instructed its loss adjuster to assess the damage and sent its home emergency contractor to make any temporary repairs that were needed to make the kitchen safe. Once its loss adjuster attended, RSA declined the claim.

RSA said its loss adjuster didn't identify any water entering the property through the ceiling and it felt the main cause of the ingress was the result of existing damage to the windowsill. It said the window frames were rotten and daylight could be seen through holes within these. This was allowing water into the property and was the cause of the damage. It didn't highlight any concerns with the flat roof on the property but thought there was signs of existing damage to the ceiling with bowing noted in the report.

Unhappy with the response to her claim, Mrs S brought her complaint to this service.

Our investigator looked at the complaint and said that he felt RSA had made a fair claim decision. He thought there was signs of a storm at the time the claim was raised but he didn't think the damage claimed for was consistent with a storm or that it was most likely caused by these conditions. Instead he felt it highlighted underlying issues with the general condition of the property and wear and tear that had been caused gradually overtime.

Mrs S disagreed with the outcome. She said the report provided by RSA and what our investigator had considered had missed the point or cause of the damage. She disagreed water was entering the property through the windowsill but said it was the roof in the bedroom where this was entering. She said this was caused by the storm as it had been repaired previously in recent years and she felt it was fair that RSA repair the damage caused by the storm now.

Our investigator asked for evidence of the roof repair but this hasn't been able to be provided. In the absence of this, he said he wasn't persuaded that the damage to the property was the result of storm damage. And because of this, he maintained that RSA acted fairly when considering the claim.

Because Mrs S disagreed, the complaint has been passed to me for decision.

## **What I've decided – and why**

I've considered all the available evidence and arguments to decide what's fair and

reasonable in the circumstances of this complaint.

I've decided not to uphold this complaint for much the same reasons as our investigator. I know this will be disappointing to Mrs S, but I'll explain why I've reached this decision.

This service has an established approach for considering storm damage and our investigator set out this and the questions we ask within his view. We'd likely say a business needs to do more if the answer to the following three questions is yes:

1. Were there storm conditions on or around the date of claim?
2. Is the damage consistent with storm damage?
3. Were the storm conditions the main cause of damage?

If the answer to any is no, it's likely the business has acted fairly.

It isn't disputed that at the time of the claim there was storm conditions. So it is the answer to questions 2&3 which determines whether it would be fair to ask RSA to do anything else with this claim.

### **Is the damage consistent with storm damage?**

There is a detailed assessment of the damage to the property provided by RSA's loss adjuster. Our investigator shared a lot of information from this report in his view and I don't think I need to set it all out again for Mrs S or RSA. But the report highlighted two areas of concern, the damage to the ceiling in the bedroom, referring to this as "*pre-existing and not a one-off event*". And the damage to the windowsill, detailing that this has rotted to the point of a visible hole that can be seen to the plasterboard. There is also a large number of photos provided, including images of the flat roof.

Mrs S has said the water was entering her property through the ceiling in the bedroom and it was coming through at quite a rate. But I'm not persuaded the evidence provided supports this, nor does it support that the damage to the property is consistent with storm damage.

The loss adjuster said they believe the roof is not the problem and I think if water was entering from here, it would have been noted during the inspection. I say this as the evidence of water sitting on the roof in different puddles shows there was recent rainfall even after the claim date and I'd have expected an issue with the roof to be highlighted during the survey.

The survey has also highlighted that the damage internally is not consistent with storm damage. Although consistent with the ingress of water, they've said "*This is wear and tear issues (decayed timber) and this will not be covered under the terms of the policy*". Like most insurance policies, Mrs S's doesn't provide cover for wear and tear and while it is likely the damage is the result of water ingress over a period of time, it is consistent with wear and tear and not storm damage.

I appreciate Mrs S feels strongly that the survey and our investigator has missed that the roof is the cause of the water ingress and this was damaged by the storm. She has said the roof was repaired in recent years but is unable to demonstrate this or what repair was carried out. But she has provided little else beyond her testimony to demonstrate the damage here or that this is the result of storm damage. Photos she has provided broadly, show the same things highlighted in the survey report and I've not seen anything which indicates this report shouldn't be relied on.

In the absence of anything else, I'm satisfied that RSA has made a fair claim decision when declining the claim. The information provided doesn't demonstrate that the damage caused is consistent with storm damage. Instead I think the storm has simply highlighted pre-existing issues with the property and its general state of wear and tear.

### **My final decision**

For the reasons I've set out above, I don't uphold Mrs S's complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mrs S to accept or reject my decision before 19 January 2023.

Thomas Brissenden  
**Ombudsman**